

CHAPTER III.

The Writ.

The first process against a Defendant is the *subpœna*, SUBPŒNA. obtained on præcipe on filing the Bill, but it cannot be obtained until the Bill is filed.

The 18th Order of 1850 provides that

Subpœnas to appear and answer, and to answer respectively, shall be in the form specified in Schedule B, to these Orders appended, with such memoranda subjoined as therein mentioned.

1850.
XVIII.

The form of a subpœna to *appear and answer* is as follows:—

Subpœna to original Bill.

IN CHANCERY.

CANADA.

Victoria, by the Grace of God, of the United Kingdom of Great Britain and Ireland, Queen, Defender of the Faith.

To (*here insert the names of all the defendants in full, as in the Bill*).

GREETING.

We command you, that you cause an appearance to be entered for you in our Court of Chancery of Upper Canada, within (*fourteen days, if the Defendant is within the jurisdiction—in other cases such time as the Court may order*) days after the service of this Writ upon you, exclusive of the day of such service, and that you answer a Bill of Complaint exhibited against you in